

Although CSAA Insurance Exchange submits evidence of an agreement to arbitrate (see Anderson Decl. & Exh. A), proof of service of the motion on claimant Nabila Faqurzadeh appears deficient. Code Civil Procedure section 1290.4 (b) states as follows: “If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) service within this state shall be made in the manner provided by law for the service of summons in an action.” CSAA Insurance Exchange does not demonstrate service of the motion pursuant to Code of Civil Procedure section 1290.4(b).

Given this procedural deficiency, the motion is continued for proper service. CSAA Insurance Exchange shall file and serve notice of the continued hearing date on claimant.

The motion to compel uninsured motorist arbitration is continued to **July 7, 2026, at 8:30 a.m., in Department 42.**

12. S-CV-0054315 Somera, Jason Rusty v. Am. Honda Motor Co.

Plaintiff is advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys’ Fees

Plaintiff moves for an award of attorneys’ fees in the amount of \$14,242.50 (incurred fees of \$13,352.50 plus \$890 in anticipated fees) and costs of \$892.42. Plaintiff had initially moved for a larger amount of anticipated fees, but reduced the total sought by way of reply brief. Defendant opposes the motion.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys’ fees actually incurred, “determined by the court to have been reasonably incurred” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiff present evidence that the parties reached a settlement providing for defendant’s buyback of the subject vehicle and that defendant would pay plaintiff’s attorneys’ fees and costs as determined by the court. (Kim Decl., ¶ 31.) While plaintiff did not provide a copy of the settlement agreement, the settlement and its terms appear to be conceded by defendant. (See generally, opposition.) The court finds plaintiff is the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys’ fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$14,242.50 in attorneys’ fees is reasonable. Determining the reasonable amount of attorneys’ fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*

v. Priest (Serrano III) (1977) 20 Cal.3d 25, 48–49.) The lodestar figure may then be adjusted, based upon factors specific to the case, to fix the fees at a fair market value for the legal services provided. (*PLCM Group v. Drexler, supra*, 22 Cal.4th at p. 1095.)

The court has carefully reviewed the declaration of counsel June Kim and exhibits thereto. Plaintiff's counsel's firm charged hourly rates of \$530 for counsel Vanessa Oliva, rates ranging from \$415 to \$445 for counsel June Kim, and rates ranging from \$210 to \$215 for two paralegals. The court finds a reduction in hourly rate is required in light of the cost of comparable legal services in Placer County for a case of this nature. The court finds an hourly rate of \$450 is reasonable for counsel Oliva, an hourly rate of \$415 is reasonable for counsel Kim, and an hourly rate of \$150 is reasonable for paralegal services.

Turning next to the question of whether the number of hours expended were reasonable, the court has carefully reviewed the declaration of counsel Kim and the billing invoice attached thereto as Exhibit 6. The billing invoice supports 33.90 total hours of incurred time. Plaintiff also submits evidence supporting 4.6 hours incurred drafting this motion for fees and reviewing the opposition and preparing the reply. (Supp. Decl. Kim.) With respect to Exhibit 6, the court observes a few instances where the work appears duplicative or unnecessary to the prosecution of the action. The court also observes instances where the work performed is insufficiently explained. In light of these observations, a small reduction in hours is appropriate and the court approves a total of 31.4 hours. This total includes both the time incurred while the case was pending and on litigating this motion for fees. The court awards plaintiff attorneys' fees as follows:

- 1.9 hours at a reduced hourly rate of \$450 (counsel Oliva)
- 25.4 hours at a reduced hourly rate of \$415 (counsel Kim)
- 4.1 hours at a reduced hourly rate of \$150 (paralegals Carreno and Caro)

As to costs, plaintiff seeks \$892.42 and provides a memorandum of costs supporting that amount. Defendant concedes this amount both by not timely filing a motion to tax costs and expressly in the opposition. The court awards costs of \$892.42 as requested.

Accordingly, plaintiff's motion is granted in part. Plaintiff is awarded attorneys' fees of \$12,011 and costs in the amount of \$892.42 for a total of \$12,903.42.

13. S-CV-0054661 Natl. Default Serv. Corp. v. Claimants to Surplus Funds

Review Hearing Regarding Stay

All claimants to surplus funds from the trustee's sale of real property known as 6503 Turnstone Way, Rocklin, California 95765 are required to appear in court on **May 12, 2026 at 8:30 a.m. in Department 42.**

14. S-CV-0054691 Lewis, Christopher v. Sugar Bowl Corp.

Motion for Preliminary Approval